

CAUSE NO. _____
IN THE DISTRICT COURT OF {county} COUNTY, TEXAS
EX PARTE {petitionerName}
COUNTY OF EXAMPLE

[PETITIONER NAME TO BE CONFIRMED],
Applicant.

DOCKET NO.: [TO BE CONFIRMED]

VERIFIED APPLICATION FOR EXPUNCTION ON THE GROUND OF MISTAKEN IDENTITY (TEX.
CODE CRIM. PROC. ARTS. 55A.006 AND 55A.256)

STATUTORY AUTHORITY

Tex. Code Crim. Proc. art. 55A.006 — The ground. Relief is available where the person was arrested solely because identifying information was inaccurate due to clerical error, or where another arrested person falsely gave the applicant's identifying information without consent and that deception is the only reason the applicant's information is in the records. It operates notwithstanding the art. 55A.001 arrest requirement, so the applicant need not have been arrested at all.

Tex. Code Crim. Proc. art. 55A.256 — The vehicle. A verified application, including authenticated fingerprint records, filed with the attorney representing the state in the prosecution of felonies in the county where the applicant resides or where the offence was alleged to have occurred. This is not a petition and it is not filed with a court.

Tex. Code Crim. Proc. art. 55A.256(b) — Prescribes the contents of the application, and makes authenticated fingerprint records a mandatory part of it.

Tex. Code Crim. Proc. art. 55A.256(c) — After verifying the allegations the prosecutor supplements missing arrest information, forwards the application to the district court with the agency list attached, and requests the order.

Tex. Code Crim. Proc. art. 55A.256(c-1) — The S.B. 1667 anti-duplication rules apply to the application: no state or local agency listed more than once, and no separate contacts or addresses for divisions of the same agency.

Tex. Code Crim. Proc. art. 55A.256(d) — The court enters a final order WITHOUT A HEARING, because the prosecutor has already verified the application upstream.

Tex. Code Crim. Proc. art. 55A.354 — The effect, and it is narrower than ordinary expunction. Agencies obliterate the applicant's identifying information and substitute the arrested person's information. They do not return or destroy the file, and index references are not deleted.

Tex. Code Crim. Proc. art. 55A.001 — The general arrest requirement, which art. 55A.006 expressly operates notwithstanding.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Court of Common Pleas of EXAMPLE County, Pennsylvania, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this application occurred in EXAMPLE County, Pennsylvania.

II. PARTIES

3. Applicant is [PETITIONER NAME TO BE CONFIRMED]. [APPLICANT ADDRESS — ADD IF REQUIRED BY LOCAL RULES]

4. Applicant has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. On or about 01/01/2020, Applicant was charged with example offence by EXAMPLE COUNTY SHERIFF'S OFFICE.

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: [APPLICANT WAS NOT THE ARRESTED PERSON — DISPOSITION OF THE UNDERLYING CASE IS NOT THE APPLICANT'S]. [DISPOSITION DATE TO BE CONFIRMED]

8. The offense grade was: Class B misdemeanour.

IV. ELIGIBILITY ALLEGATIONS

9. Applicant may be eligible for expunction on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Applicant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Applicant respectfully requests that this Court:

(a) Grant this Application and enter an Order directing the expunction of the applicant's identifying information in the records and files of the arrest identified in this application in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to obliterate and substitute all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, [PETITIONER NAME TO BE CONFIRMED], verify that the statements made in this application are true and correct to the best of my knowledge, information, and belief. I understand that false statements herein are made subject to penalty of perjury under Tex. Code Crim. Proc. art. 55A.256(b).

[PETITIONER NAME TO BE CONFIRMED]

[APPLICANT ADDRESS]

Date: _____

[NOTE: Date of birth and Social Security Number should be added by applicant if required by the applicable form or local court rules.]

PROPOSED ORDER

CAUSE NO. _____

IN THE DISTRICT COURT OF {county} COUNTY, TEXAS

EX PARTE {petitionerName}
COUNTY OF EXAMPLE

[PETITIONER NAME TO BE CONFIRMED]
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Application filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Pennsylvania State Police, EXAMPLE County Court of Common Pleas, EXAMPLE COUNTY SHERIFF'S OFFICE, and all other criminal justice agencies with records pertaining to this matter are hereby directed to obliterate the applicant's identifying information and substitute the arrested person's information all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this application:

- Authenticated fingerprint records from a DPS FAST location (participant obtains and submits; LegalEase never receives or inspects them)
- Private-entity attachment under art. 55A.253(a)(8)(C) (participant's own list)

Prepared by applicant using LegalEase RCAP. This is not an official court form.